

Memorandum of Understanding

Between



Coodu Trust India (CTI)

&



VYAKTI VIKAS KENDRA INDIA (VVKI)

The Art of Living Campus, Kanakpura, Udayapura, Bangalore-560082,
Karnataka

for

**River rejuvenation project work (Comprehensive
Watershed Management)
in Tamil Nadu State**



தமிழ்நாடு தமில்நாடு TAMILNADU 26.8.2023

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COODU TRUST
DINDIGUL

பெ. செல்வம்
முத்திரைத்தாள் விநியோகஸ்தர்
உரிமை எண் 31-2010/B1
3/32A, சிழக்கு காப்பினியாட்டி,
கள்ளிப்பட்டி (PO) தாழக்கொம்பு (Via)
திண்டுக்கல், தமிழ்நாடு.

MEMORANDUM OF UNDERSTANDING

This Memorandum of Understanding ("MOU") is made on this 28th day of August 2023 at Bangalore, Karnataka.

Between

M/s Coodu Trust India is a trust incorporated in the year 2000, under the provisions of the Indian Trust Act 1882, having its registered and head office at H-83, R.M. Colony, Dindigul-624001, Tamil Nadu, India (hereinafter referred to as the "CTI" which expression, unless it is repugnant to the context or meaning thereof, shall be deemed to mean and include its successors in interest and permitted assigns) of the FIRST PART;



For COODU TRUST

Director



And

Vyakti Vikas Kendra India, a Public Education and Charitable Trust and registered under Indian Trust Act 1882, having its office at The Art of Living International Center, 21st Km, Kanakapura Road, Udayapura, Bengaluru, India- 560082 (hereinafter referred to as the "**VVKI**" which expression, unless it is repugnant to the context or meaning thereof, shall be deemed to mean and include its successors in interest and permitted assigns) of the SECOND PART.

The trust and the Social Organization are hereinafter individually referred to as a "Party" and collectively as the "Parties".

WHEREAS

- A. CTI, as part of its various development activities, undertakes community organization, capacity building, research, monitoring & evaluation and documentation of various development issues. They have implemented projects in Watershed Development, Women Development, Self Help Groups (SHGs), Micro-Credits, Agriculture and Organic farming, Health, and Skill Development over two decades. CTI has been appointed as the Field Agency for the State of Tamil Nadu by National Water Mission under Ministry of Jal Shakthi to foster sustainable water conservation and Water rejuvenation activities.
- B. VVKI as part of its charitable activities has been engaged in implementing various social service projects, particularly river rejuvenation and water conservation activities in various districts of Tamil Nadu

The Coodu Trust India is desirous of partnering with VVKI to meet its Objectives on societal needs with Water conservation and sustainability activities

The parties are desirous of entering into an MOU / Agreement to set out terms and conditions there in.

1. CTI and VVKI will engage in active collaboration in all activities associated with conservation of water through restoration, recharge and rejuvenation of streams and other water bodies based on scientific planning, community participation and institutional support. They will work together and involve themselves for undertaking activities and programmes in the following domain areas across the State of Tamil Nadu



For **COODU TRUST**

[Signature]
Director



1. Field survey and data collection
2. Preparation of Stream based Project plan and Project Proposal along with district-based action plan and Implementation Plan for river rejuvenation
3. Social Mobilisation in the project area
4. Capacity Building of all stakeholders
5. Fund Mobilisation from Government and other sources
6. Execution of the engineering and other structures
7. Monitoring and Evaluation
8. Documentation
9. Sustaining the project

2. The Project Timelines are

- a. RRP work execution – 3 years, starting year 2023-24
- b. Process Monitoring / Concurrent Evaluation 3 years, starting from 2023-24
- c. Impact studies – 3 years starting 2024-25.

3. The MoU Validity:

This MoU is valid for 4 years, that is for the entire duration of the river rejuvenation project. The Parties may, at any time prior to the expiry of the Term (including any extensions to the Term), may choose to mutually terminate this MOU, for convenience.

4. Framework for Implementation

The Parties will prepare, approve and adopt a Framework for Implementation (Project Implementation Plan), which would detail, the processes, activities, the financials and controls, the systems and procedure and the roles and responsibilities of each organisation in the implementation of the project. The Framework for Implementation will be an integral part of this MOU

5. The broad areas of operation of each organisation

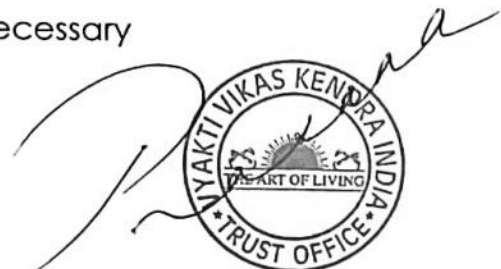
VVKI:

- a. Field survey and data collection
- b. Preparation of Stream based action plan and Project Implementation Plan for river rejuvenation covering all districts of Tamil Nadu and Phasing plan
- c. Liaising with the Central government where ever necessary
- d. Social Mobilisation in the approved project area



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Director



- e. Capacity Building and motivation of the community leaders and members
- f. Ensuring Community participation in the execution of the Rain water harvesting structures and recharging wells
- g. Evaluation and Impact Studies
- h. Documentation
- i. Activities associated with Sustaining the project
- j. Deploy supervisory / execution / support staff for undertaking all activities associated with VVKI
- k. Coordinate with CTI in all activities and appraise them the status of activities undertaken by VVKI

Coodu Trust India

- a. Assist VVKI in Field survey and data collection from government and other agencies
- b. Coordinate in the Preparation of Stream based action plan and Project Implementation Plan for river rejuvenation covering all districts of Tamil Nadu and Phasing plan by VVKI
- c. Capacity Building of the Government officials and Local Body representatives in coordination with VVKI
- d. Liaising with the State government and government departments at all levels including State, District, Block and Village level
- e. Facilitating submission of proposals prepared by VVKI to government / department and getting the required approvals and funds for all the TN River streams from government.
- f. Ensuring quality execution of the Rain water harvesting structures and recharging wells by arranging the required materials and through the community leaders / members channelized by VVKI
- g. Process Monitoring and Evaluation
- h. Appraisal of the progress to the concerned government office. Submission of periodical progress report to the competent authorities
- i. Documentation of the processes and project in coordination with VVKI
- j. Deploy supervisory / execution / support staff for undertaking all activities associated with CTI
- k. Coordinate with VVKI in all activities and appraise them the status of activities undertaken by CTI

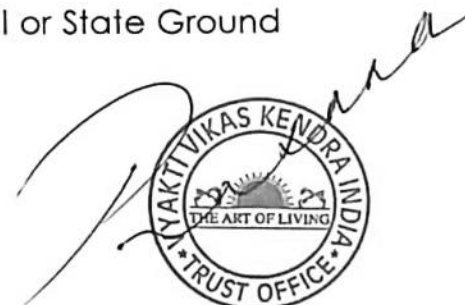
6. Coopt other Organisation

The CTI and VVKI may coopt only UNICEF and Central or State Ground Water Division at State level for advisory purpose.



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[Signature]
Director



7. Institutional Arrangement

For implementation of this Project, VVKI nominates its National Director of Art of Living Social Projects who will be responsible for all communication with Coodu Trust India. Coodu Trust India also nominates Mr. V. Srikanth as a single point of contact from Coodu Trust India for all communications on this Program. The details of these SPOC are as under:

<u>For VVKI:</u>	<u>For CTI:</u>
Mr. Nirav Rawal National Director, The Art of Living Social Projects-VVKI, Art of Living International Campus Gate No 1, 21st Km Kanakapura Road, Udayapura Post, Bangalore – 560082; Mobile No:7738112098, E-Mail: nirav.raval@projects.artofliving.org	Mr. V. Srikanth Project Director, CTI, 74, 2 nd Floor, Thadicombu Road, Dindigul – 624 001. Mobile No. 9994487433 Email : pc.coodustrust@gmail.com

8. Status of the Relationship

The relationship between the Parties is solely that of independent contractors and the relationship is on a principal-to-principal basis. Neither Party shall be deemed to be, or hold itself out to be, an employee, agent, or servant of the other Party.

9. Data Integrity:

Each party will maintain confidentiality of the other party and will not disclose confidential data or information without express written consent of the other party.

10. Jurisdiction:

This MOU shall be governed and construed in accordance with the laws of India subject to Bangalore jurisdiction. Disputes resolution shall be done by sole Arbitrator mutually appointed by consent of both parties, subject to Indian Arbitration Act

IN WITNESS WHEREOF THE PARTIES HERETO HAVE SIGNED THIS MOU ON THE EFFECTIVE DATE MENTIONED HEREINABOVE.

This Memorandum of Understanding is signed and sealed.

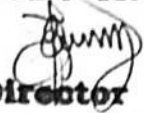
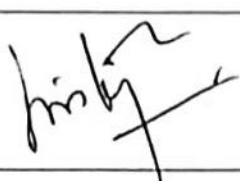
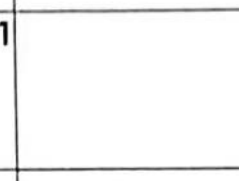


For COODU TRUST

Director



THE PARTIES HERETO, INTENDING TO BE LEGALLY BOUND HEREBY, HAVE CAUSED THIS MoU TO BE DULY EXECUTED AS OF THE DATE AND YEAR FIRST WRITTEN ABOVE.

Coodu Trust India		Vyakti Vikas Kendra India	
Signature (CTI)		Signature (VVKI)	
 For COODU TRUST  Director		 	
Name	S. Jagadeesan	Name	Prasana Prabhu
Designation	Director	Designation	Chairman
Place	Dindigul	Place	Bengaluru
Date	28.08.2023	Date	28.08.2023
Witness 1 (CTI)		Witness 1 (VVKI)	
			
Name	V. Srikanth	Name	Nirav Rawal
Designations	Project Director (WASH)	Designations	National Director
Place	Dindigul	Place	Bengaluru
Date	28.08.2023	Date	28.08.2023
Witness 2 (CTI)		Witness 2 (VVKI)	
			
Name	P. Kannan	Name	Dr. Chandrashekar Kuppan
Designations	State Project Coordinator	Designations	RRP Project Director, Tamil Nadu
Place	Dindigul	Place	Vellore, TN
Date	28.08.2023	Date	28.08.2023